

IN THE HIGH COURT OF TANZANIA
(DAR ES SALAAM DISTRICT REGISTRY)

AT DAR ES SALAAM

CIVIL APPEAL NO. 10 OF 2020

(Arising from the Judgment and Decree of the District Court of Kigamboni
at Kigamboni Civil Case No. 7 of 2018 before Hon. A.L. Mchome, **SRM**
dated 09th December, 2019.)

SEIF ABDALLAH NGAKONDA APPELLANT

VERSUS

FELIX MATHIAS MATEMU..... RESPONDENT

JUDGMENT

15th April & 07th May, 2021.

E. E. KAKOLAKI J

Before the District Court of Kigamboni at Kigamboni in Civil case No. 07 of 2018, the respondent successfully sued the appellant for committing adultery with his wife one Stella Eliwanga and awarded compensation of Tshs. 5,000,000/=. Dissatisfied with that decision the appellant has filed the appeal to this court staging four grounds of appeal as follows:

1. The Trial Court erred in law and fact when it entertained and decided the matter without joining the Respondent's wife who was necessary for determination of this case.

2. The Trial Court erred both in law and fact by failure to evaluate evidence adduced before it hence reached in unfair decision.
3. The Trial Court erred both in law and facts when decided the matter basing on exhibits which were never tendered in court.
4. The Trial Court erred both in law and fact when it awarded general damages without proper and justifiable cause.

The background story that gave rise to this appeal as gathered from the record can be briefly narrated as hereunder. The respondent who resides and owns a grocery store (shop) at Vijibweni area within Kigamboni Municipality Dar es salaam Region sometimes in 1999 married to one Stella Eliwanga under Christian rites and the two led their marriage faithfully and peaceful until December 2019 when the sweet life story was tainted by adultery scandal. On the 21/12/2019 at about 11.00 pm the respondent while at his shop in company of his wife with colleagues including the appellant quenching thirsty before received a request from his neighbour who had a sick child to escort him to the hospital. He had therefore to escort him and leaving behind his wife, the appellant/defendant and other colleagues. On his return home he attempted to knock the door without response and on peeping through his bedroom's window to his surprise, he saw his wife and the appellant in infragante delicto enjoying sex before he almost lost consciousness only to find them already left the house on regaining it. Later on her wife resurfaced seeking for forgiveness while the appellant who allegedly was nearby called him over the phone purporting to be at the hospital tracing him. on his wife's side she decided to disappear from the matrimonial home and her where about is unknown to date.

In the bedroom two pairs of track suits claimed to belong to the appellant were recovered therefrom, tendered and admitted in court as exhibits P2 and P3. Further to that sugar and tea leaves allegedly left behind by the appellant were also recovered, tendered and admitted as exhibit P4. It was claimed by the respondent that the said act caused him to suffer from heart and mental diseases such as hypertension and sought medical attention. After full trial of the case and having considered evidence adduced by both parties the trial court was satisfied that the respondent had proved his case and entered judgment in his favour awarding him Tshs. 5,000,000/= as general damages. It is from that decision which discontented the appellant this appeal has been preferred.

Both parties were represented during the hearing of this appeal and sought leave of the court to dispose it of by way of written submission. The appellant secured legal representation from Stephen Ndila Mboje learned advocate while the respondent enjoyed the services of Mr. Aretas Stephen Kyara learned advocate. Submitting in support of the appeal Mr. Mboje argued the first ground separately while combining the 2nd, 3rd and 4th grounds as one. It was his argument on the first ground of appeal that it was wrong for the trial court to proceed with hearing and determination of the matter of this nature without joining the appellant's wife whom he was accused of committing adultery with. He said for the court to properly determine the case the appellant's wife should have been joined as a party so as to establish whether the person mentioned in the marriage certificate is the one alleged to have committed adultery and moreover be subjected to cross examination as to whether they were living together with the respondent. Failure to joining her as a party to the suit Mr. Mboje echoed the issue of

marriage and consent was never proved hence no proof of adultery since the court acted on the papers only to prove existence of marriage.

On the 2nd, 3rd and 4th grounds of appeal he argued evidence by the respondent and his witnesses was full of ambiguity and contradiction particularly on the date of commission of the alleged adultery. He contended while the respondent testified that at 11.00 pm is the time when he escorted his neighbour to the hospital PW2 also said it is at the same time when he saw the respondent's wife closing the shop and entering into the house with appellant something which suggests that the respondent was also present at the scene. To him it was impossible for the appellant to commit such immoral act in the presence of the respondent. Another set of contradictory evidence he contended is that of PW4 stating that the event occurred on 22/12/2017 contrary to testimonies of PW1 and PW2. And further that the said PW4 was a close friend to the respondent and on the fateful day they were drinking together so he is not a reliable witness as he knew the respondent's plans before. He added that it was beyond comprehension how could the respondent who had lost consciousness recognise the persons alleged to be involved in adultery. To him such evidence full of contradiction and unreliable could not have established and proved respondent's case as adultery is a matter of fact can be only established by direct or circumstantial evidence which was not in existence in this case. He cited the case of this court in **Dadi Said Kwangwa Vs. Nurdin Akachapa** (1999) TLR 398 to support his stance. Lastly he complained the court did not evaluate the evidence properly hence wrongly adjudged in favour of the respondent. He therefore urged the court to find the grounds of appeal meritorious hence allow the appeal with costs.

In rebuttal to the appellant's submission Mr. Kyara for the respondent said the submission by the appellant are vexatious without any merit. On the existence of marriage between the respondent and his wife he argued it was proved by marriage certificate tendered and admitted in court as exhibit P1. He also cited the provisions of section 55(a) and (b) of the Law of Marriage Act [Cap. 29 R.E 2019] on modes of proving marriage. With regard to the assertion that the wife was not joined in the suit as a party he argued being the perpetrator of the immoral act could not have testified in favour of what happened but rather against in order to cover up her face. Further to that he said since the incident date the wife ran to her hills and has never been back to date so joining her could not be of any significance to this case. on the issue of consent he countered the same is immaterial to the circumstances of this case as adultery is committed where intercourse is not by force. He referred the court to the definition of the term adultery as provided by Oxford Dictionary of Law, New Edition.

In regard to the assertions of contradictory evidence of prosecution witnesses Mr. Kyara contended that the same was aimed at misleading the court. He said the contention that PW1,PW2 and the appellant were together on the 21/12/2017 at 11.00 pm when the cause of action accrued is a blatant lie, concoction and afterthought as the record is very clear that the respondent at that time had escorted his neighbour with sick child at the hospital. He argued all prosecution witnesses were credible witnesses and there was no contradictions in their testimonies. On the allegation that PW4 was a close friend so his evidence ought not to have been believed he submitted there is nothing wrong for him to testify as the appellant cited no law that prevents him from testify on the reasons of being friend. Mr. Kyara

echoed the case of **Dadi Saidi Kiwangwa** (supra) relied on by the appellant is inapplicable to the facts of this case as the parties involved in commission of adultery act were found in flagrante delicto as PW2 also saw the appellant entering in the house with respondent's wife before they closed the door. He invited the court to follow the principle in the case of **Gai Ipenzule Vs. Sumi Magoye** (1983) TLR 289 that in adultery cases however slight the evidence is sufficient to prove adultery. It was his submission therefore that the respondent's case was with cogent evidence to prove the appellant's illegal and dishonest acts of adultery which disintegrated the spouses' relationship and that the trial court rightly evaluated the evidence before arriving to its conclusion. Therefore the appeal before this court is without merits and this court should dismiss it with costs. The appellant had no rejoinder submission to make.

I have taken time to travel through the record and consider the submission made by both parties. In this judgment I am intending to consider and determine the grounds of appeal as presented in arguments. On the first ground which was argued separately the appellant's lamentation is on non joinder of the respondent's wife to the case for the purposes of determination of the issues on existence of marriage, identification of the person involved in the alleged adultery and consent. It is the respondent's response that joining her to the case had no significance being a person involved in the immoral act who also disappeared from home to date and the proof of marriage was made through marriage certificate exhibit P1. And that the proof of consent was not mandatory under the circumstances of this case as adultery is not an act involving force of anyone of the parties.

The issues of parties to the suit is regulated under the Civil Procedure Code, [Cap. 33 R.E 2019] (CPC). Under Order I Rule 10(2) of the CPC, the Court may order an addition of any person to the suit be it plaintiff or defendant whose presence before the Court is necessary to enable the court to effectually and completely determine and settle all the questions before it. Sub rule (2) of Rule 10 of Order I of the CPC reads:

*(2) The court may, at any stage of the proceedings, either upon or without the application of either party and on such terms as may appear to the court to be just, order that the name of any party improperly joined, whether as plaintiff or defendant, be struck out, and **that the name of any person who ought to have been joined, whether as plaintiff or defendant, or whose presence before the court may be necessary in order to enable the court effectually and completely to adjudicate upon and settle all the questions involved in the suit, be added.** (emphasis added).*

The complaint or major question for adjudication before the trial court by the respondent was adultery allegedly committed by the appellant to respondent's wife. This is signified by the respondent's claim in paragraph 3 of the plaint and framed issues by court at page 4 of the typed proceedings which were whether the defendant/appellant committed adultery to the respondent/plaintiff's wife and to what reliefs are the parties entitled to. Applying the above cited provision to the facts of this case since the claims of adultery and reliefs sought were directed to the appellant and since there is nothing to suggest that joining of the wife was so necessary for

determination of the questions before the court, and given the fact that marriage was proved by the certificate exhibit P1 and the fact that consent under the circumstances of this case was immaterial, I subscribe to Mr. Kyara's submission on the first ground and therefore of the finding that there was no need of joining the respondent's wife in the suit. The first ground therefore has no merit and I dismiss it.

Coming to the 2nd, 3rd and 4th grounds of appeal argued jointly I will start with the issue of contradiction of prosecution witnesses particularly on the on the time when the cause of action arose. Mr. Mboje submitted that PW1 he left the shop at 11.00pm while PW2 said at 11.00pm both PW1 and PW2 were at the shop drinking, meaning that the time when PW2 saw the appellant and respondent's wife entering the house and closing the door the respondent was present. Mr. Kyara resisted the submission in that there was no such contradiction. A glance of an eye to the said two witnesses' testimonies has failed to establish that contradiction. The Respondent (PW1) in his evidence stated that at that time was called by the neighbour who had a sick child to escort him to the hospital and left the place. His testimony is concreted by PW2 when stated that the respondent was called by his neighbour and left him, the appellant and the respondent's wife behind before he asked for more drink. To let him speak for himself, I quote his testimony in court:

"On 21/12/2017, I went to work at Oil Com. After that I passed at the plaintiff's shop, I went to buy alcohol. While there, Mr. Felix (respondent) left, he was informed his neighbours' child was taken to hospital. I Felix's wife ad Seif Abdallah remained,

at 11.00pm I asked the plaintiff's wife to sell me beers. The plaintiff's wife said she was closing the shop, when closing that was when I witnessed the defendant entering inside the plaintiff's house. When he entered inside they closed the door. I don't know what happened next. The following day, the plaintiff told me that, he found the defendant, his wife committing adultery."

From the above evidence of PW2 it is evident to me that at 11.00pm the respondent was not at the scene as he had left to escort his neighbour to the hospital before PW2 later on saw the appellant and respondent's wife entering the house and closing the door. Thus there was no contradiction on the presence of the respondent at the scene around 11.00pm as claimed by Mr. Mboje.

On the complaint of failure to properly evaluate evidence in which Mr. Kyara submits was properly evaluated, I also find no merit on the contention. In arriving at the decision of the court the trial magistrate considered the evidence of PW1 which was rightly corroborated by that of PW2. It was PW1's testimony that when leaving the shop premises he left behind the appellant and his wife before he found them in his bedroom making love peeping through the window. The presence of the appellant in that house is confirmed by PW2 who saw the two entering the said house and closing the door. This solid evidence of PW1 and PW2 is not shaken in anyway by the defence of the appellant and his witness by claiming that he was not at the scene when PW1 returned home at 01.00 am. I so find because there is nothing advanced by the appellant to the court's satisfaction proving that

there was a possibility of the respondent imputing at him such serious allegation of adultery because of either ill relationship between them or any other reason. As rightly submitted by Mr. Kyara when citing the case of **Gai Ipenzule** (supra) the case which was also relied on by the trial magistrate to base her decision the principle is that in adultery cases can rarely be proved by direct evidence but rather circumstantial evidence. The court in that case had this to say:

"It is not the law that direct evidence of persons caught in flagrante delicto is the only admissible evidence to prove adultery. Very rarely adultery is proved by direct evidence; the common practice is that adultery is proved by circumstantial evidence."

In the present case the evidence was so direct as PW1 saw the appellant entering the house with respondent's wife and the respondent found them in flagrante delicto. I therefore find no reason to fault the learned trial magistrate's finding on the proof of the claim of adultery.

With regard to the lamentation of the Court relying on the evidence of PW4 (Assistant Medical Officer) to award the respondent damages which according to Mr. Mboje he was a friend of PW1 and on that day they were drinking together, again I find no merit on it. It is the law that every witness must be accorded credence unless there are reasons for discrediting him/her. The reason of PW4 being a friend to PW1 therefore disqualified from tendering evidence in favour of the respondent does not find support in any provision of law nor was it supported by any case law cited by Mr. Mboje. The trial court I hold was entitled to rely on it. On the awarded

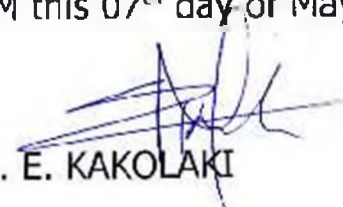
damages of Tshs. 5,000,000/- it is the law that adultery when proved entitles a claimant to damages. See the case of **Juma Ng'hosha Vs. Amos Mutanda** (1989) TLR 96 (HC). In awarding damages the law under section 74(2) of the Law of Marriage Act, 1971 provides that in assessing damages for adultery, the court shall have regard to any relevant custom of the community to which the parties belong. See also the case of **Gai Ipenzule** (supra). In this case since the parties were living in the community which has mixed customs in my opinion it was difficult for the trial magistrate to comply with the law to the letters. By basing on the consequences of the appellant's act to the respondent which suffered him hypertension and mental depression I hold the trial magistrate rightly directed herself. With regard to the amount awarded I also find it reasonable and see no reasons to disturb it. It is from those reasons I also find the 2nd, 3rd, and 4th grounds of appeal argued together without any merits and I dismiss them.

In the premises and for the foregoing reasons, I find appeal is devoid of merits and hereby proceed to dismiss it with costs.

No orders as to costs.

DATED at DAR ES SALAAM this 07th day of May, 2021.




E. E. KAKOLAKI

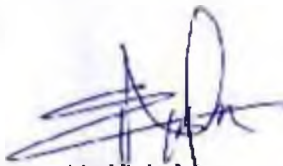
JUDGE

07/05/2021

Judgment has been delivered today 07/05/2021 in chambers in the presence of Ms. JANE GOODLUCK MSETA Advocate for the appellant, the Respondent in person and and Ms. Asha Livanga, court clerk.

Right of appeal explained.




E. E. Kakolaki

JUDGE

07/05/2021